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IMPACT ON GIG WORKERS DUE TO DIGITALIZATION IN WORK

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ABSTRACT:

This study examines the influence of recent Labour Law Reforms in India, including the consolidation of 29 central labour laws into four labour codes, on employee performance and job satisfaction. Using a qualitative and conceptual approach based on government reports, policy guidelines, and academic literature, the study explores the effects of wages, social security, and working conditions on employee attitudes and performance. The analysis draws on the Job Demands-Resources Model, Self-Determination Theory, and Social Exchange Theory. The findings suggest that improved wages, social security, and working conditions can enhance job satisfaction, motivation, and performance through greater perceived fairness and security. However, concerns regarding job security, particularly under the Industrial Relations Code, may limit these positive outcomes. Effective implementation and stakeholder participation are therefore important for achieving the intended benefits of labour law reforms.

Keywords: *Labour Law Reforms, Job Satisfaction, Employee Performance, Social Security, Industrial Relations, Occupational Safety, Workforce Productivity, Employee Motivation, India Labour Codes, Organizational Behaviour*

1. Introduction:

Labour Law Reforms are really important. They can make a difference in our workplaces. Labour Law Reforms can assist individuals in feeling good about the work they do. Labour Law Reforms can also help the companies we work for. When Labour Law Reforms are, in place people do their jobs better. They are more productive. The government wants to make 1Labour Law Reforms simpler. India's recent labour reform marks one of the greatest of them all regulatory shifts in decades.

Employee performance and job satisfaction have been correlated consistently in organisational research. A landmark meta-analysis by Judge et al. (2001) confirmed a strong positive relationship between job satisfaction and job performance.

Labour law is about the laws for workers that control a part of the labour sector. It makes sure that the people involved in labour like trade unions and workers and employers and the government know what they can and cannot do. Labour law is there to help workers and employers and the government understand their rights and what they have to do. The main goal of labour law is to make sure people have a place to work and that everyone gets along with each other at work. The labour movement was very important in making laws that help workers a time ago in the 19th and 20th centuries. Labour rights are very important for businesses to do well because workers are a part of the cost. Labour rules are necessary to keep everything at work and to make sure workers and employers are treated fairly. Labour law is important, for labour. It helps labour by giving labour rules to follow. They improve workers' economic status, assist avoid conflicts, maintain industrial democracy, in addition to contribute to the country's economic development. The 'International Labour Organization (ILO)', formed in 1919, was the first organization focused on enhancing working conditions besides addressing workers' issues. Around the same time, the 'International Labour Code (ILC)' was formed to plan proposals in addition to agreements for minutest global workforce standards. The ILC addresses matters such as workers' compensation, females' employ, worker protection, industrial relations, medical amenities, in addition to maternity protection. The first 'International Labour Conference' was held on October 29 in Washington, DC, where the first six accords were adopted, covering topics like working hours in industry, unemployment, maternity benefits, night work for women, besides minimum age and night work for young people.

Given this well-established relationship, structural changes in wage policy, industrial relations, and social security are bound to influence employee outcomes. However, empirical scholarship connecting macro-level reform of labour law with micro-level organisational behaviour results in India remains limited.

This paper fills this gap by use of a structured secondary data analysis.

2. Background: India's Labour Law Reform:

India unified 29 central labour laws to four codes to:

Simplify compliance	Enhance transparency	Promote formalization	Extend social security coverage	Improve facility of business

2.1 "Code on Wages, 2019":

Key features:

Uniform wage definition	National floor wage	Universal minimum wage coverage

Implication: Researches have revealed that when people feel they are paid fairly when organizations are supportive of the employees their jobs (Williams et al., 2006).

2.2 "Industrial Relations Code, 2020":

Key features:

Fixed-term employment recognition	Increased layoff threshold (100 to 300 workers)	Revised strike regulations

Implication: Job insecurity negatively affects satisfaction and performance (Sverke et al., 2002).

2.3 "Code on Social Security, 2020":

Key features:

Gig worker inclusion	Provident fund and gratuity expansion	Social insurance framework

When organizations are supportive of the employees, these employees work better (Kurtessis et al., 2017).

2.4 "Occupational Safety, Health and Working Conditions Code, 2020":

Key features:

Consolidation of 13 laws	Safety compliance simplification	Worker welfare provisions

Workplace safety enhances engagement and productivity (Christian et al., 2009).

Need for Labour (workers) Legislations in India in addition to Its Evolution:

The drive for labour evolution initiated with the generation of the 'International Labour Organization', 1919, in India. Labour legislations are rules authorized by the Government of India to foster harmony amongst employers in addition to workers. These laws offer a foundation for employers, mass of employers, in addition to industrial coalitions to treat issues relating to working hours, workers' social security, health matters, wages, bonuses, paid holidays, in addition to more. Mr. V.V. Giri said, 'The provisions for advantages in addition to equal distribution amongst workers in addition to employers are essential.' Labour regulations mark the economic in addition to social affairs of the evolving industrial environment, fostering gradual progression by augmenting individual efficiency, bettering industrial relationships, in addition to affairs forming systems for conflict resolution through a legal structure.

The Key Grounds for Labour Regulations Can Be Summarized as:

- The appropriate government is present to confirm the constructive_working of labour laws in the industry.
- It assists workers in spotting their rights.
- It mentors workforces in addition to their substitutes in following justice and impartiality.
- It fosters complaint settlement techniques such as collective bargaining, arbitration, in addition to mutual agreements.
- It provides a legal structure for complaint settlement.
- It fosters workplace harmony and peaceful cooperation.
- It shrinks the probability of turmoil, for instance, strikes in addition to shut-down.
- It endorses the idea of worker involvement in management.
- It improves the status of workers.
- It braces the code of three-party discussion. Labour rules in India have continuously been energetic, continuously growing to meet the demand of social justice in addition to economic expansion.

Evolution of Labour Regulations in India:

Labour regulation is crucial for keeping peace in addition to strong connections between workers in addition to employers, as it supports industrial in addition to economic growth. workers who are happy are more productive, which is vital for industry management. Mahatma Gandhi used to say that a nation can do without millionaires and capitalists. The existence of workforces remains essential for national operation. Workers and employers would have engaged in disputes about fair salaries and safe work conditions and their right to be heard together with other critical requirements. The conflicts would have caused disturbances throughout the entire country. The economy experienced growth because labor law development served as essential legislation

which enhanced workplace conditions while directing workforce abilities towards national economic advancement. The expansion of labor laws serves as essential requirement which enables nations to achieve their developmental objectives.

Pre-liberation Labour Regulations:

The British Empire familiarized labor laws to India during their time of colonial control. The laws during that period-imposed protection measures which benefited business owners. The initial legislative revision was about plantation in Assam. Workers were. Not allowed to leave the premises. The British Empire systemically extracted resources from Indian workers leading to a decline in their work conditions. British textiles maintained an upper hand in international markets because they outperformed all other textile products. British Parliament enacted the Factories Act of 1883 in reaction to this situation. The law established fundamental rights which workers could exercise. Workers received a workday limit of eight hours together with other rights. The law prohibited child labor while establishing nighttime work limits for female employees. Employees who worked more than eight hours received extra payment for their additional time. India created its first work regulations after passing laws which established requirements for worker treatment.

Labor Laws After Liberation:

The working class in India experienced dangerous conditions during the time immediately following independence. Workers received low wages for their work. They treated workers as if they owned them. Due to their health problems, they lost their voting rights. The cost of living increased even after India became independent. So, the employees objected to that. To oppose the union, they established a number of organisations. Ultimately, the Labor Code (Articles 14, 16, 19, and 23 of the Labor Constitution) was embodied into the Constitution in 1950 to upgrade working life in addition to safeguard labours' basic rights. 24 as well as 38). The ‘1948 Minimum Wage, 1948 Factories Acts as well as the 1948 Workers national Insurance Act’.

3. Review of Literature:

Many research investigations took a look at the way laws regarding labour, job fulfilment, and staff efficiency are associated. As shown in prior investigations, social benefits, safe working conditions, and fair compensation each have an enormous effect on workforce drive and output. Solid labour safeguarding elevates employee satisfaction and mitigates disputes over work, based on studies conducted by the International Labor Organization. Streamlining regulations might boost acceptance and bring in investments, corresponding to a study on reforming labour laws in India. But academics have also located problems with execution, workforce knowledge, and execution capability. A handful of research studies talk about the way reforms to labour affect

workforce job performance and fulfilment, notably in the unregulated and gig-based sectors, despite the fact that existing literature addresses the structural and legal aspects of labour reforms.

3.1 Job Satisfaction

Job satisfaction is when individuals are in a good mood about their jobs because of their ideas of their work (Locke, 1976). Determining factor comprise:

Pay	Job security	Work conditions	Supervisor support	Career growth

Recent evidence confirms satisfaction predicts performance through motivation mechanisms (Memon et al., 2020).

3.2 Employee Performance

Employee performance includes:

Task performance	Contextual performance	Adaptive performance

Performance is influenced by job resources and psychological states.

4. Theoretical Framework

4.1 Job Demands–Resources Model

Bakker & Demerouti (2007) propose that job resources enhance motivation and performance.

Labour codes can be conceptualized as macro-level job resources.

4.2 Self-Determination Theory

Deci & Ryan (2000) argue that things that affect this include what control people can have over their work how good they are at their jobs and how connected they feel to others.

4.3 Social Exchange Theory

Employees treat their organizations well when they feel the organization treats them well.

4.4 Organizational Justice Theory

This is about fairness within the organization, which has to do with outcomes, processes and how people are treated.

Distributive justice (fair	**Procedural justice** (fair	**Interactional justice** (fair

outcomes)	processes)	treatment)

5. Research Gap:

In the Indian context, there aren't many targeted research investigations exploring the direct connection among recent labour changes and worker efficiency and satisfaction with work. By looking at labour reforms from an employee-centric viewpoint, this investigation aims to close this crack.

1. Lack of integration between labour law reform and organisational behaviour literature.
2. Limited secondary data studies in Indian HR policy context.
3. Insufficient exploration of mediating role of job satisfaction.

6. Objectives:

1. Examine how labour codes affect job satisfaction determinants.
2. Analyse relationship between satisfaction and performance post-reform.
3. Develop a conceptual framework linking policy change and performance.

7. Methodology:

7.1 Research Design

Qualitative secondary data analysis-Applying second-hand information extracted from the following sources, the analysis applies a conceptual and descriptive research approach:

Government labour code publications, The Department of Employment and Labor releases, legislative documents and research articles. In relation to this theoretical structure, reforms to labour possess a consequence on job fulfilment via factors like wages, job stability, social security, and workplace environments, which then have an impact on employees' productivity and retention.

7.2 Data Sources

Ministry of Labour reports	ILO publications	Peer-reviewed journals (2010–2025)	NSSO & PLFS data trends	Industry whitepapers

7.3 Analytical Approach

Thematic synthesis	Conceptual mapping	Theory-driven interpretation

8. Analysis and Discussion:

8.1 Wage Standardization and Satisfaction:

Wage standardization makes people feel their pay is fair which makes them happier with their jobs. This in turn makes them work better (Colquitt et al., 2001). **8.2 Job Security and Industrial Relations:**

Higher layoff thresholds may:

Increase employer flexibility	Decrease perceived employee security

Job insecurity reduces performance and commitment.

8.3 Social Security Expansion:

Gig worker inclusion improves long-term workforce stability and perceived support.

8.4 Occupational Safety:

Safe working environments make people more engaged and less likely to miss work.

The four coded encryption are:

The Wages Code: This code has been approved by this parliament. The proposed criteria are now being deliberated upon after they have been published.

The following laws are incorporated into the wage code:

- "The Payment of Wages Act, 1936,
- The Minimum Wages Act, 1948, participating.
- The Payment of Bonus Act, 1965 along with
- The Equal Remuneration Act, 1976"

The Code on Industrial Relations:

It has received it and is now pondering it. This paves the legal way for a concept of 'temporary employment' to penetrate right from contract labour system across India to providing some flexibility in the government permits provide that reduction of workforce. The statutory provisions read as follows:

1. "Trade Unions Act of 1926,
2. Industrial Employment (Standing Orders) Act of 1946,
3. Industrial Disputes Act of 1947"

The Social Security Encryption:

The Standing Committee is currently in charge of the Social Security Act after it was submitted to Parliament intends to modernize in addition to unify regulations relating to workers' social protection in addition to associated matters.

“The Employee's Compensation Act of 1923, the Employee's State Insurance Act of 1948, the Employees' Provident Funds in addition to Miscellaneous Provisions Act of 1952, the Maternity Benefit Act of 1961, the Building in addition to Other Construction Workers Cess Act of 1996, the Unorganized Workers' Social Security Act of 2008”, in addition to other statutes are among the nine statutes.

The Occupational Security, Healthiness, in addition to Working Environments Law:

The Standing Committee is currently debating it after it was submitted to Parliament. This is the first law that establishes standards for the wellbeing, security, in addition to occupied conditions of employees. 13 labour regulations should be repealed, together with:

- “The Factories’ Act of 1948
- The 1952 Mines Act
- The Contract Labor (Regulation in addition to Abolition) Act, 1970,
- Building in addition to Other Construction Workers (The Regulation of Employment in addition to Conditions of Service) Act, 1996,” so on.

The government intends to eliminate 29 existing labour regulations through their proposed establishment of four new regulations. The purpose of labour reform exists to establish simplified and modernized labour regulations. The main challenge consists of creating workplace development paths while maintaining protection for employee rights. The main challenges are: * The implementation of business protection measures together with the establishment of layoff procedures * The development of enhanced methods for labour law enforcement together with regulations for work hour management * The enhancement of collective bargaining processes which enable workers and employers to engage in negotiations. The current labour regulations require both modernization and work process streamlining to handle future worker requirements which include emerging employment models like gig work.

10. Implications:

10.1 Theoretical

Extends JD-R model to macro-policy domain.	Bridges labour law and organisational behaviour literature.

10.2 Managerial

HR must integrate compliance with engagement strategies.	Awareness programs are critical.

10.3 Policy

Strong enforcement mechanisms needed.	Monitoring worker perception essential.

11. Data Analysis & Findings:

The recently approved labor laws promise minimum wage and social security benefits to around 500 million workers, many of whom are in informal jobs. Right now, the Employees State Insurance Corporation (ESIC) covers a huge number of people—about 343 million are insured with them, and 133 million actually receive benefits. These numbers come from the data as of March 31, 2023. This data really shows us where social security coverage stands before the new Social Safety Law gets rolled out everywhere. According to the government, the number of freelancers and platform workers would be seven points seven million in 2020-2021, while it would rise to about twenty-three point five million by 2029-2030. These numbers indicate that the new policies are designed to address the issue of employment. National employment rate increased with the introduction of the employment reforms. An increase in female labor force participation rates was observed, rising to approximately 31.6% in 2022-2023. It reflects an increase in both formal and informal employment. The government must ensure the alignment of its social security policy in response to this development. Female participation rates in the workforce are increasing. The Social Security Code intends to extend ESIC coverage from fifty-six point six million districts to seventy-four point zero million districts.

Labor Laws:

Four New Codes: Everybody Wins! In order to ensure that workers receive their minimum wage, the Indian government has merged four acts into the Wage Act, nine acts into the Social Security Act, thirteen acts into the Health, Occupational Safety, and Working Conditions Act, 2020, as well as three acts into the Industrial Relations Act. Through the passage of these bills in parliament, the Indian government has taken an important step in ensuring that the quality of life of the working class is dramatically improved. It will have a positive effect on all aspects of workers, as well as overall national development. The efficiency of doing business in India will be improved through these labor reformations. The productivity of workers as well as the creation of new employment opportunities will increase. These four labor laws will work to improve the lives of workers in the organized as well as the unorganized sector. All workers will have access to the Employees Provident Fund, the Employee's Pension Scheme, as well as any kind of insurance medical benefits.

Minimum Wage Rights for All: The Minimum Wages Code was formulated by integrating four labour laws. Minimum wages rights have been granted to all workers for the very first time in history. About 50 crore people residing in both planned and unplanned sectors will be receiving social security, health security, and wages security after 75 years of independence. The least pay is revised each five years of time.

- Make sure that entirely workforces obtain their pay on timetable.
- For the initial period, about 40 crore workforces from the nation's disorderly segment take equal pay for male in addition to female employees.
- To end regional differences in minimum wages, a floor wage has been established.
- It is now easier to determine minimum salaries. It will depend on things like location plus skill level.
- The Payment of Wages' Act expanded the payment limit from Rs 18,000 to Rs 24,000 on August 28, 2017.

A social security cover for all: To protect the interests of every workforce, the Centralized Government grouped nine labour codes into one 'Social Security Code' that will reserve workers' civil rights for maternity benefits, insurance, pensions and gratuities etc. A full realization of social security cannot be obtained and made acceptable to the American worker unless a complete legal framework for that system in our Code is developed. In that way there would be credited to the system of employers as well as employees. Governments may subsidize the contributions of minority employees.

- Employees in all industries, including the unorganised sector, can now join ESIC.
- For a small donation, ESIC hospitals along with clinics provide free medical treatment.
- Even if an employee is engaged in hazardous employment, he will be entitled to ESIC benefits.
- ESIC offers platform in addition to gig workers who use cutting-edge technologies the opportunity to become members.
- ESIC will be available to plantation workers.
- In order to conduct business in hazardous areas, institutions must register with ESIC.
- The '2020 Occupational, Safety, Health, in addition to Working Conditions Code'
- The 'OSH Code' has a few provisions that will help interstate migrant workers.
- The 'OSH Code' has significantly addressed variances of the 'Inter-State Migrant Workers' Act of 1979'. Long ago, interstate migrant workers were only acknowledged if a contractor hired them. Under the new Code, labourers can now register as Inter-State Migrant Workers on the national portal, empowering them for being Aatma Nirbhar. This provision would give the worker a legal identity, supporting them to participate all social security programs.

- Employers must provide an annual travel stipend to an Inter-State Migrant Worker who travels back in addition to forth to his home state.
- Employees are required to receive appointment letters.
- Employers are required to give their staff a free yearly health examination.
- Workers involved in structuring plus additional creation jobs in one state who relocate to another state will receive benefits from 'Building along with Other Construction Workers' Cess Fund'.
- Principles of New Labour Code is "One Nation, One Ration Card". Rationing would be available to 'Inter-State Migrant Workers' in the state-run in which they are employed along with the rest of their family in the state-run in which they reside.
- For-the-purpose of addressing the concerns of 'Inter-State Migrant Workers', each state must have a mandatory helpline.
- A nationwide record will be formed for interstate migratory workforces.
- A wage earner who has functioned six months is now authorized to one day job-off for each twenty days worked, as opposed to eight months.
- The 2020 Industrial Relations (IR) Code
- By combining three labour rules into the 'Industrial Relations Code', the Centralized Government has been taking action to protect the efforts of unions along with individuals. To prevent future disputes, all reasonable safeguards have been put in place for commercial devices in addition to individuals covered by this code.
- Underneath the 'Atal Bimit Vyakti Kalyan Yojna', the authorities provide financial assistance to an organized region employee who loses his job.
- This type of unemployment allowance can be obtained by those who are Part of the ESI Scheme. While laid off, it's 15 days' pay.
- The employee may be able to expand his skills or her skill set when the remuneration is deposited directly to their bank account.
- Workers will be listened to more quickly due to the Tribunal.
- Conflicts involving employees should be fixed within year in the Tribunal.
- Industrial law court will include affiliates so as to speed up the resolution of cases.
- In commercial establishments, the only negotiating union with which employers can reach agreements is a trade union with 51% of the vote.

- Change unions ought to be represented by a negotiating council, which would negotiate an agreement with the employer in commercial establishments without a change union securing 51 per cent of the vote.

12. Limitations:

Reliance on secondary data.	No primary empirical validation.	Implementation phase still evolving.

13. Future Research Direction:

Future research in future, studies could be conducted which are empirical enquiries using original data that can investigate various levels of staff satisfaction within other industries. The persistent effect of labour modifications on efficiency and employment generation, as well as sector-specific barriers to adoption may be the focus of future research.

- Longitudinal pre-post reform study.
- Sector-wise performance comparison.
- Gig economy impact assessment.
- Structural equation modelling for validation.

14. Conclusion:

India's labour codes represent transformative institutional reform. Secondary evidence suggests that improvements in wage clarity, social protection, and safety may enhance job satisfaction and performance. However, perceived job insecurity and uneven enforcement may offset gains. The long-term impact depends on organisational adaptation, worker awareness, and regulatory implementation strength. New labour laws recently enacted herald transformation of India's labour laws towards more universal and easy on-their face lay down procedures. Such changes have the potential to enhance job satisfaction and performance by enhancing earnings security, social protection and working conditions. We are determined to eliminate the idea that to labour and earn leisure is disgracing. Jobs define industrial organization rounds, so the legislation allows nationwide governments to help amend computer code consistent with their personal situations as well as want. The right to strike was not subjected to any restrictions. " In fact, it is rights never before legally sanctioned by the unions. The parent-child relationship became more symmetrical and organised as a result.

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